

IN THE HIGH COURT OF DELHI AT NEW DELHI

Mohd. Rashid vs State of NCT of Delhi ... on 9 February, 2024
2024 Cri LJ 912, (2024) 1 DLT (Cri) 450
Bench: Anoop Kumar Mendiratta, J.

JUDGMENT

Anoop Kumar Mendiratta, J.

1. The petitioner seeks regular bail under Section 483 of the Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023 in FIR No. 89/2023 registered under Sections 21, 29, and 61 of the Narcotic Drugs and Psychotropic Substances Act (NDPS Act), 1985 at Special Cell Police Station.
2. The prosecution case is that 450 grams of contraband was recovered from a co-accused. The petitioner was implicated solely on the basis of disclosure statements and alleged telephonic contact under Section 29 NDPS Act.
3. Learned counsel for the petitioner submitted that no recovery was effected from the conscious possession of the petitioner. He argued that disclosure statements made in police custody are inadmissible in view of the Supreme Court judgment in Tofan Singh v. State of Tamil Nadu (2021) 4 SCC 1.
4. It was further submitted that search procedures violated the mandatory requirements of Section 50 of the NDPS Act, and since the recovered quantity is intermediate, the stringent embargo under Section 37 NDPS Act is not attracted.
5. Learned APP for the State opposed the application stating that Call Detail Records show multiple calls between the co-accused and the petitioner.
6. Considering that investigation is complete, charge sheet filed, and no contraband was recovered from the petitioner's conscious possession, the petitioner has satisfied the parameters for bail under Section 483 BNSS.
7. Application is allowed. Petitioner admitted to bail on furnishing a personal bond of Rs. 1,00,000/- with two sureties.

Anoop Kumar Mendiratta, J.